

20STCV47014 20STCV47014

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-15

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Case Number: 20STCV47014 Hearing Date: July 15, 2026 Dept: T

Ibrahim

Mikhail, et al. vs Hanif Hirji

Motion

to Compel Plaintiff to Post Appeal Bond

Moving Party: Defendant

Hanif Hirji

Responding Party: Plaintiff Ibrahim Mikhail

Tentative Ruling: Deny

BACKGROUND

This is a motor vehicle and general negligence action brought by Plaintiffs Ibrahim Mikhail and Maria Mikhail against Defendant Hanif Hirji ("Defendant").

On October 6, 2025, the case was called for a jury trial. On October 14, 2025, the jury rendered a special verdict finding that Defendant was negligent and that Defendant's negligence was not a substantial factor in causing harm to Plaintiff Ibrahim Mikhail ("Plaintiff"). On November 12, 2025, by reason of this special verdict, the Court entered judgment in favor of Defendant.

On February 19, 2026, following the Court's denial of Plaintiff's motion for new trial and

motion for judgment notwithstanding the verdict, Plaintiff filed a notice of appeal.

Defendant
now moves for an order compelling Plaintiff to post an appeal bond.

Plaintiff
opposes, and Defendant replies.

MOVING PARTY POSITION

Defendant argues that Code of Civil Procedure section 917.1(a)(2) empowers the Court to require an appeal bond for costs awarded pursuant to Code of Civil Procedure section 998. In addition, the Court has discretionary power to require the party seeking appeal to post a bond while an appeal is pending under Code of Civil Procedure section 917.9.

Defendant further argues that the Court should compel Plaintiff to post an appeal bond in order to protect Defendant's ability to collect the judgment from Plaintiff and that the motion should be granted to eliminate the substantial risk of the judgment becoming uncollectable.

OPPOSITION

Plaintiff contends that Section 917.1 does not authorize the Court to compel Plaintiff to post a bond but instead governs only whether enforcement is stayed. Plaintiff further contends that Section 917.9 provides no basis for the requested order because defendant offers no evidence of risk to collectability. Plaintiff also contends that, even if the Court concludes that an undertaking is relevant to some portion of the cost award, Defendant failed to demonstrate what amount should be fixed for this undertaking. In addition, Defendant's authorities do not support compelling a bond where no stay is sought, and no evidence of dissipation is offered.

REPLY

Defendant
responds that because Defendant's judgment includes the award of costs for Code

of Civil Procedure section 998 expert witness fees, he is entitled to a bond that at least covers the expert witness fees under *Gallardo v. Specialty Restaurants Corp.* (2000) 84 Cal.App.4th 463. In addition, this Court has discretionary power to impose a bond for costs only judgments, which the Court should exercise to mandate the posting of an undertaking for Section 998 costs.

Defendant

further responds that the Court should require a bond for the entire judgment, as the Court of Appeal in *Quiles v. Parent* (2017) 10 Cal.App.5th 130 suggested in dicta that the Legislature should require a bond for any award of costs that exceed \$50,000 or \$100,000.

Plaintiff is also free to post a bond with a surety company and is not claiming any indigence as a basis for seeking relief from this bond requirement.

Defendant

finally responds that Plaintiff's authority is not binding or applicable, as one of the cited cases does not appear to exist.

ANALYSIS

I. Legal

Standard

A. Automatic Stay

Pursuant to Code of Civil Procedure section 916(a), and "[e]xcept as provided in Sections 917.1 to 917.10, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order."

In

specifying some of the exceptions to this automatic stay rule, Code of Civil Procedure section 917.1(a) provides that, "[u]nless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for any of the following:

(1)

Money or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action.

(2)

Costs awarded pursuant to Section 998 which otherwise would not have been awarded as costs pursuant to Section 1033.5.

(3)

Costs awarded pursuant to Section 1141.21 which otherwise would not have been awarded as costs pursuant to Section 1033.5.”

“The

undertaking shall be for double the amount of the judgment or order unless given by an admitted surety insurer in which event it shall be for one and one-half times the amount of the judgment or order. The liability on the undertaking may be enforced if the party ordered to pay does not make the payment within 30 days after the filing of the remittitur from the reviewing court.” (Code Civ. Proc. § 917.1, subd.

(b).)

“Costs

awarded by the trial court under Chapter 6 (commencing with Section 1021) of Title 14 shall be included in the amount of the judgment or order for the purpose of applying paragraph (1) of subdivision (a) and subdivision (b).

However, no undertaking shall be required pursuant to this section solely for costs awarded under Chapter 6 (commencing with Section 1021) of Title 14.” (Code Civ. Proc. § 917.1, subd. (d).) “A cost is a cost, unless specifically

excepted in section 917.1, subdivision (a).”

(Quiles v. Parent (2017) 10 Cal.App.5th 130, 148.)

B. Discretionary Stay

Under

Code of Civil Procedure section 917.9(a), “[t]he perfecting of an appeal shall not stay enforcement of the judgment or order in cases not provided for in Sections 917.1 to 917.8, inclusive, if the trial court, in its discretion, requires an undertaking and the undertaking is not given, in any of the following cases:

(1)

Appellant was found to possess money or other property belonging to respondent.

(2)

Appellant is required to perform an act for respondent's benefit pursuant to judgment or order under appeal.

(3)

The judgment against appellant is solely for costs awarded to the respondent by the trial court pursuant to Chapter 6 (commencing with Section 1021) of Title 14."

II. Discussion

At the outset, the Court notes that neither party directly addresses the threshold question of whether Plaintiff's appeal of the underlying judgment for Defendant's recovery of his costs under Code of Civil Procedure section 998 automatically stayed its enforcement. On this question, the Court finds the Court of Appeal's analysis in *Quiles*, supra, 10 Cal.App.5th at pp. 143–144, to be instructive: "But it is now clear that an expert witness fee award under section 998 is not, on its own, a money judgment under section 917.1, subdivision (a)(1). Instead, it resides in a separate category of judgments and orders that require a bond for a stay on appeal. [Citation.]"

Accordingly,

as Defendant sought recovery of his expert witness fees under Section 998, and as the Court found that \$210,718.00 of these fees were recoverable by Defendant in ruling on Plaintiff's motion to tax costs, Plaintiff's appeal of the underlying judgment did not automatically stay enforcement of these fees under Section 917.1(a)(2). Rather, this section requires the making of an undertaking "for the portion of the judgment consisting of section 998 expert witness costs, but not for the section 1032 routine costs." (*Gallardo v. Specialty Restaurants Corp.* (2000) 84 Cal.App.4th 463, 468; accord. *Quiles*, supra, 10 Cal.App.5th at p. 137, fn. 3 [noting that the Court of Appeal in *Gallardo* correctly held that the undertaking amount should be calculated based solely on the expert witness fee awarded given Section 917.1(d)'s express application to only paragraph (1) of subdivision (a).]) Given this statutory requirement, the Court finds that Plaintiff must make an undertaking to stay

enforcement of the judgment awarding expert witness fees to Defendant.

However,

as Defendant does not appear to have taken any steps to enforce this portion of the judgment against Plaintiff, and as Plaintiff does not appear to have taken any affirmative steps to stay its enforcement, Defendant fails to provide any factual or legal basis for his requested order compelling Plaintiff to make this undertaking within 30 days of the hearing.

(Compare *Bank of San Pedro v. Superior Court* (1992) 3 Cal.4th

797, 799 [the real-party-interest opposed the bank's motion for issuance of a writ of execution on "the ground that enforcement of the judgment was automatically stayed by his appeal of the order awarding costs under section 998"]; *Quiles*, supra, 10

Cal.App.5th at p. 135 [the defendant applied ex parte to stay enforcement of the judgment pending appeal of the attorney fee and cost awards in the amended judgment]; *Gallardo*, supra, 84 Cal.App.4th at p. 466 [the plaintiff filed a writ of supersedeas to stay the writ of execution for the awarded expert witness fees].) Although

Section 917.1(a) requires an undertaking, this section does not empower a trial court to compel the making of an undertaking where no stay has been sought. Nor does this section empower a

trial court to make this order based solely on the judgment debtor's perfecting of an appeal. (Compare *Bank of San*

Pedro, supra, 3 Cal. 4th at p. 799 ["The sole issue in this case is

whether enforcement of the award of expert witness fees is automatically stayed by operation of law while the judgment is being appealed by plaintiff. We hold such a judgment is not automatically stayed and that the appellant must post an appeal bond or other sufficient undertaking to obtain a stay pending appeal."].)

Nor

has either party provided the Court with sufficient evidence to fix the amount required for this undertaking under Section 917.1(b), as the proper calculation of this amount based on the awarded expert witness fees of \$210,718.00 is either double or one and one-half times these fees, depending on whether the undertaking shall be given by an admitted surety insurer. (Code Civ. Proc. § 917.1, subd. (b).)

Moreover,

to the extent that Defendant asks the Court to exercise of its discretion under Section 917.9 to require that Plaintiff make an undertaking for the remaining Section 998 costs awarded in the amended judgment, the Court finds that

Defendant has failed to demonstrate the probable risk of damage in the absence of a bond or undertaking pending appeal. (Quiles, supra, 10 Cal.App.5th at p. 145 [“In a case where the costs judgment is large or the danger of asset dissipation is acute, a trial court can mitigate any injustices arising from the costs-only judgment rule.”].) Because there is no evidenced basis for the provision of this discretionary relief as to the \$32,655.72 in remaining costs awarded, and as a stay of enforcement of these awarded costs does not otherwise require an undertaking given Section 917.1(d)’s express language, the Court declines to impose an undertaking requirement for such costs at this time,

Therefore, as Defendant seeks to compel the posting of a bond where no stay has been sought, and as no evidence has been submitted for the Court to fix the bond amount of the required undertaking for any stay of Section 998 expert witness fee award, nor for the Court to impose an undertaking requirement on the remaining Section 998 costs awarded to Defendant, the motion is denied without prejudice.

II. Errant Citation

Notedly, Plaintiff’s opposition contains an errant citation to *Hein v. Highlands Insurance Co.* (1988) 206 Cal.App.3d 1510 for the following proposition: “The moving party bears the burden of establishing entitlement to the relief sought.” Although a case bearing a similar title, *Hein v. Highlands Ins. Co.* (1976) 64 Cal.App.3d 627, does exist, the discussion therein does not appear to support this proposition. Given the fact that well-established case law does, in fact, support this contention, the Court does not conclude that Plaintiff intended to mislead the Court. That said, counsel is reminded that, “[s]imply stated, no brief, pleading, motion, or any other paper filed in any court should contain any citations— whether provided by generative AI or any other source—that the attorney responsible for submitting the pleading has not personally read and verified.” (*Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426, 431.)

RULING

Defendant Hanif

Hirji's Motion to Compel Plaintiff to Post Appeal Bond is
DENIED without prejudice.